

60 Sloane Avenue

in the Royal Borough of Kensington & Chelsea

planning application no. PP/16/03878

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Demolition behind part retained facades and redevelopment of the site to provide a 7 storey mixed use residential (49 units), retail and leisure development, including 3 basement storeys providing off-street car parking, leisure and retail space, plant and cycle parking.

The applicant

The applicant is **SA Ltd**, the architect is **David Chipperfield**, and the agent is **Savills**.

Key dates

Pre-application meeting: 12 November 2015.

Strategic issues summary

Employment and town centre uses: Although office space will be lost at 60 Sloane Avenue; a greater amount of office floorspace will be re-provided in a designated employment zone at 253-261 Kensal Road, together with a significant potential uplift in jobs, which is supported. Consideration should be given to affordable workspace at Kensal Road (paragraphs 14-19).

Affordable housing: The applicant states that a cash-in-lieu contribution of £5M for affordable housing is proposed. Notwithstanding the applicant's assertion that substantial cross-funding is required to re-provide workspace off-site, GLA officers note the very high values that are achievable at the Sloane Avenue site, as well as the very large floorspace of some of the units proposed, and consider that a higher contribution should be possible. The Council's independent assessment of the applicant's financial viability assessment should be shared with GLA officers before the application is referred back to the Mayor (paragraphs 22-26).

Urban design: The layout, height and massing of the scheme, and the architectural approach of replicating the design and materials of the retained facades is supported (paragraphs 31-33).

Transport: Car parking is considered excessive given the location and should be reduced (paragraphs 40-45).

Recommendation

That Kensington & Chelsea Council be advised that the application does not yet comply with the London Plan, for the reasons set out in paragraph 57 of this report; but that the possible remedies set out in that paragraph could address these deficiencies.

Context

1 On 4 July 2016, the Mayor of London received documents from Kensington & Chelsea Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008, the Mayor has to provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1B(c) and 3E of the Mayor of London Order 2008:

- *"1B(c) Development which comprises or includes the erection of a building outside Central London and with a total floorspace of more than 15,000 square metres".*
- *"3E Development (a) which does not accord with one or more provisions of the development plan in force in the area in which the application site is situated; and (b) comprises or includes the provision of more than 2,500 square metres of floorspace for a use falling within the following classes in the Use Classes Order (i) class A1 (retail); (iii) class A3 (food and drink); (xii) class D2 (assembly and leisure)."*

3 Once Kensington & Chelsea Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 Currently the 0.25 hectare site contains the five storey terracotta-tile-clad former Harrods 'Motor Car Garage and Workshops' building, dating to 1911, with 1994 glass and steel additions by Stanton Williams, and further additions in 2008. The building currently comprises ground floor retail and commercial office space above.

6 The site is located on the northern side of Sloane Avenue, with Draycott Avenue to the north, and Ixworth Place to the west. To the east, the site is bounded by the site of Marlborough Primary School, which has been demolished and a new school is under construction. The site is within the Fulham Road East town centre, which is classified as a District centre in the London Plan. There is a wide mix of different building types, scales, ages and land uses in the area, including residential, commercial and retail.

7 The site is located within South Kensington, in a rare pocket of the Borough that is not a designated conservation area. The nearest listed building is the Grade II listed former Michelin building to the west of the site, fronting onto Fulham Road.

8 Sloane Avenue, Draycott Avenue and Ixworth Place all form part of the local road network. The nearest part of the Transport for London Road Network (TLRN) is approximately 500 metres away (Cromwell Road A4) and the nearest part of the Strategic Road Network (SRN) is Brompton Road (Brompton Road/Sloane Avenue junction), which lies at a similar distance away. The site is well served by buses with 14 routes stopping nearby. The nearest station is South Kensington (London Underground) which is approximately 500 metres from the site. Measured on a scale of 1a – 6b where 6b is the highest, the site has a PTAL rating of 6a, which is

considered excellent. Docking stations in the vicinity of the site are experiencing high levels of demand, with the nearest being on Sloane Avenue.

Details of the proposal

9 The proposal seeks to demolish the existing building, retaining the terracotta-tile facades, and construct a new building replicating these facades on the remainder of the site. The new 7 storey building would provide a mixed use residential (49 units), retail and leisure scheme, including 3 basement storeys to provide off-street car parking, leisure and retail space, plant and cycle parking. The residential units are arranged around an internal atrium/courtyard.

Case history

10 On 12 November 2015, a pre-application meeting was held at City Hall for a detailed application for the redevelopment of 60 Sloane Avenue for a mix of retail, leisure and residential uses, with off-site office use at 253-261 Kensal Road. The GLA's pre-application advice report of 9 December 2015 concluded that the principle of the proposal was supported, subject to the assessment of viability, justification regarding the mix of housing, and further information regarding heritage and urban design, particularly residential quality of the courtyard space, transport, and climate change.

Strategic planning issues and relevant policies and guidance

11 The relevant issues and corresponding policies are as follows:

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|------------------------|--|
| • Employment | <i>London Plan</i> |
| • Mix of uses | <i>London Plan</i> |
| • Town centre uses | <i>London Plan; Town Centres SPG</i> |
| • Housing | <i>London Plan; Housing SPG; Housing Strategy; Shaping Neighbourhoods: Play and Informal Recreation SPG; Shaping Neighbourhoods: Character and Context SPG</i> |
| • Affordable housing | <i>London Plan; Housing SPG; Housing Strategy</i> |
| • Density | <i>London Plan; Housing SPG</i> |
| • Historic Environment | <i>London Plan</i> |
| • Urban design | <i>London Plan; Shaping Neighbourhoods: Character and Context, SPG; Housing SPG; Shaping Neighbourhoods: Play and Informal Recreation SPG</i> |
| • Inclusive design | <i>London Plan; Shaping Neighbourhoods: Accessible London: Achieving an Inclusive Environment SPG</i> |
| • Transport | <i>London Plan; Mayor's Transport Strategy</i> |
| • Parking | <i>London Plan; Mayor's Transport Strategy</i> |
| • Crossrail | <i>London Plan; Mayoral Community Infrastructure Levy; Crossrail SPG</i> |
| • Climate change | <i>London Plan; Sustainable Design and Construction SPG; Mayor's Climate Change Adaptation Strategy; Mayor's Climate Change Mitigation and Energy Strategy; Mayor's Water Strategy</i> |
| • Air quality | <i>London Plan; the Mayor's Air Quality Strategy; Control of dust and emissions during construction and demolition SPG</i> |

12 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the Royal Borough of Kensington & Chelsea Consolidated

Local Plan (2015), Extant Policies from the Unitary Development Plan (2002), and the 2016 London Plan (Consolidated with Alterations since 2011).

13 The National Planning Policy Framework, Technical Guide to the National Planning Policy Framework and National Planning Practice Guidance are also relevant material considerations.

Principle of development

Employment and town centre uses

14 The building is currently a mix of office, retail and leisure uses. The office element is arranged over four floors totalling 8,133 sq.m. G(IA) with retail providing 1,713 sq.m. and leisure providing 1,632 sq.m. The applicant states that the building provides large office floorplates that are difficult to divide into smaller spaces owing to the large single centralised core arrangement. Sub-dividing the space into smaller offices would therefore result in large amounts of space inefficiently required for internal circulation and access. Furthermore, the services arrangement would need to be substantially upgraded to meet current standards and to service a series of smaller office spaces. The applicant states that a number of tenants have now vacated the building as it does not meet their requirements. Market evidence is also provided stating that floorplates of this size are significantly larger than market requirements in this area.

15 Consequently, the applicant proposes that the new building would contain no office space and would instead be predominately residential, with an element of retail and leisure space. As a result of extensive discussions with the Council to find a site to replace this lost employment space, the applicant is proposing to re-provide a greater level of office space off-site in a designated employment zone at 253-261 Kensal Road, as shown below. A planning application for 253-261 Kensal Road has been submitted to the Council alongside this application, and will be linked through a section 106 agreement.

Gross internal area (GIA) sq.m.	Existing	Proposed	Net additional scheme space
60 Sloane Avenue			
Retail	1,713	2,646	933
Leisure	1,632	1,932	300
Commercial (B1 Office)	8,133	0	-8,133
Residential	0	14,155	14,155
Total	11,478	18,733	7,255
253-261 Kensal Road			
Retail	0	293	293
Commercial (B1 Office)	0	13,280	13,280
Commercial (B2 Industrial) not in use	2,575	0	-2,575
Total	2,575	13,573	10,998

16 This demonstrates that an additional 1,226 sq.m. of retail space, 300 sq.m. of leisure space, and 2,572 sq.m. of commercial space would be provided across the two sites. The applicant also calculates that across the two sites these uses could potentially generate an additional 284 jobs once operational (101 retail, 39 leisure and 144 commercial jobs) compared to the current situation.

17 London Plan Policy 4.2 'Offices' encourages renewal and modernisation of existing office stock in viable locations; seeks increases in the current stock where there is authoritative, strategic and local evidence of sustained demand for office-based activities; however it also supports changes of surplus office space to other uses. The site is not designated as a strategic office location in the London Plan, nor does it lie within the Central Activities Zone; however it does sit within the Fulham Road East town centre, classified as a District Centre in London Plan Table A2.1, with medium growth potential and moderate demand for retail, leisure and office space. London Plan Policy 4.3 'Mixed Use and Offices' supports land swaps as is proposed by the re-provision of office space at 253-261 Kensal Road, which lies within an employment zone. As discussed below, a financial viability assessment has been submitted to the Council, covering both 60 Sloane Avenue and 253-261 Kensal Road. The workspace at Kensal Road is proposed to be let at market rates; however the applicant states that the Kensal Road proposal is in itself not viable without substantial cross-funding from 60 Sloane Avenue. Notwithstanding this, the Council has no specific policy requirement for affordable workspace; however its vision for development in the employment zone is to support its function as a location for small and medium industries and the cultural and creative sector in particular. London Plan Policy 4.10 'New and Emerging Economic Sectors' also supports the provision of more affordable workspace such as start-up space and 'grow-on' space. Consequently, the applicant should give further consideration to the provision of such space as part of viability considerations. As discussed below, the Council's independent advice on viability should be shared with GLA officers.

18 The applicant has provided evidence to demonstrate that the existing Sloane Avenue office space is surplus to market requirements and would be problematic to convert. Policy 4.2 provides support for conversion to other uses. Although the proposed restoration of 60 Sloane Avenue in isolation would result in a loss of office floorspace, the re-provision of greater floorspace at Kensal Road would provide additional job opportunities in an employment zone, appeal to more local businesses, and create a greater intensity of employment than the very large single floorplates at 60 Sloane Avenue. The principle of re-providing the quantum of existing office floorspace, as well as an additional uplift, is supported, subject to clarification on viability and further consideration of affordable workspace.

19 The provision of increased retail and leisure uses in a designated town centre is also supported in line with London Plan policies.

Residential development

20 The scheme proposes 49 new units on the site. This supports London Plan Policy 3.3 'Increased Housing Supply' and contributes to the annual housing target (733) for Kensington and Chelsea, as outlined in London Plan Table A4.1. The residential uses are supported.

Housing

21 This scheme includes the following housing mix, all for market sale:

One bed	4 (8%)
Two bed	12 (25%)
Three bed	28 (57%)
Four bed	3 (6%)
Five bed	2 (4%)
Total	49

Affordable housing

22 London Plan Policy 3.9 'Mixed and Balanced Communities' seeks to promote mixed and balanced communities by tenure and household income. Policy 3.12 'Negotiating Affordable Housing' seeks to secure the maximum reasonable amount of affordable housing. Policy 3.11 'Affordable Housing Targets' requires that 60% of new affordable housing provision should be for social and affordable rent and 40% for intermediate rent or sale.

23 Policy 3.12 also states that affordable housing should normally be provided on-site and only in exceptional cases where it can be demonstrated robustly that this is not appropriate in terms of London Plan policies, may it be provided off-site. A cash-in-lieu contribution should only be accepted where this would have demonstrable benefits in furthering affordable housing and other policies in the London Plan and should be ring-fenced and, if appropriate, pooled to secure additional affordable housing either on identified sites elsewhere or as part of an agreed programme for the provision of affordable housing.

24 The proposal includes no on-site affordable housing. The applicant states that the provision of on-site affordable housing would lead to inefficiencies, given the relatively low number of units that could be provided and the requirement to provide a separate core, entrance and communal space. GLA officers accept that the constrained nature of the site, and the limitations of providing affordable housing in this very high value area, justifies the lack of on-site affordable housing.

25 The applicant states that it has searched extensively to provide a suitable off-site solution to deliver affordable housing, including contacting housing associations. As part of pre-application discussions with the Council, the applicant prepared a scheme to provide 12 affordable units at St. Charles Square; however the scheme was not supported by the Council on design grounds. As discussed below, a cash-in-lieu contribution has therefore been proposed. GLA officers acknowledge the difficulty of finding off-site locations for affordable housing within the Borough; however for a cash-in-lieu contribution to be acceptable, the Council should provide details of its programme for affordable housing delivery.

26 In accordance with London Plan Policy 3.12, a financial viability assessment has been submitted to the Council, covering both the 60 Sloane Avenue site and the 253-261 Kensal Road site. The applicant states that this includes an appraisal to demonstrate that the Kensal Road proposal is in itself not viable and could not be delivered without substantial cross-funding from 60 Sloane Avenue. In addition, a cash-in-lieu contribution of £5M for affordable housing is proposed. Notwithstanding the applicant's assertion that substantial cross-funding is required to re-provide workspace off-site, despite no affordable workspace being provided; GLA officers note the very high values that are achievable at the Sloane Avenue site, as well as the very large floorspace of some of the units proposed. Consequently, officers consider that a higher contribution should be possible. The Council's independent assessment of the applicant's financial viability assessment should be shared with GLA officers.

Housing choice

27 London Plan Policy 3.8 'Housing Choice' encourages a choice of housing sizes and types based on local needs. The scheme is made up of a range of unit sizes, from 1-bed through to 5-bed units, with 67% being family-sized. The Council should confirm that the proposed mix reflects local housing requirements.

Density

28 London Plan Policy 3.4 'Optimising Housing Potential' states that taking into account local context and character, the design principles in Chapter 7 and public transport capacity, development should optimise housing output within the relevant density range shown in Table 3.2, although the London Plan notes that these ranges should not be applied mechanistically and local factors should be taken into account. The site is within a 'central' setting, where the density matrix sets a guideline of 650-1,100 habitable rooms per hectare and 140-405 units per hectare for a PTAL of 4-6. The density proposed is approximately 196 units per hectare, which is within the London Plan density range and is acceptable.

Children's play space

29 Policy 3.6 of the London Plan seeks to ensure that development proposals include suitable provision for play and recreation. Further detail is provided in the Mayor's supplementary planning guidance 'Shaping Neighbourhoods: Play and Informal Recreation', which sets a benchmark of 10 sq.m. of useable child play space to be provided per child, with under-fives child play space provided on-site as a minimum.

30 The expected child yield is 10, requiring 100 sq.m. of play space, with 6 under-fives, requiring 60 sq.m. of play space as a minimum. It is recognised that the child yield only just meets the requirement for on-site play space as defined in the Mayor's SPG; however no play space is proposed. It is noted that a rooftop play space of 137 sq.m. was proposed at pre-application stage and the applicant should clarify its response to this policy requirement.

Urban design

31 The proposed ground floor frontages along Draycott Avenue, Ixworth Place and Sloane Avenue are well activated by retail, providing a flexible mix of unit sizes, as well as access to leisure uses at basement level and entrances to the three residential cores. Vehicular and service access is located in the least prominent corner of the building. Although a blank and inactive wall is located on the boundary with the now demolished Marlborough Primary School, the under-construction school includes a commercial building against this boundary.

32 London Plan Policy 3.5 'Quality and Design of Housing Developments' promotes quality in new housing provision, with further guidance provided by the Mayor's Housing SPG. A central courtyard atrium is proposed, with each upper floor stepping back, allowing light and ventilation into the centre of the site, as well as allowing most units to be dual aspect. White glazed bricks are also proposed to increase light penetration. The living spaces and primary bedrooms for each unit are located on the outer elevation of the building, with the secondary bedroom spaces towards the courtyard. The width of the courtyard narrows to 6 metres at the west end of the first floor (increasing in increments of 0.8 metres at each level), which raises some concerns about privacy and overlooking; however it is recognised that this is mitigated by locating single units around each corner of the central courtyard, and incorporating large facade depths and raised window sills. The constrained and narrow nature of the site is also recognised. In order to allow sufficient light and ventilation, the applicant should confirm minimum floor to ceiling heights of the residential units.

33 The height and massing of the scheme is similar to the surrounding context and is supported. The architectural approach of replicating the design and materials of the retained facades, while omitting some of the historic detailing, is also supported.

Historic Environment

34 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the tests for dealing with heritage assets in planning decisions. In relation to listed buildings, all planning decisions should “*have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses*” and in relation to conservation areas, special attention must be paid to “*the desirability of preserving or enhancing the character or appearance of that area*”. London Plan Policy 7.8 ‘Heritage Assets and Archaeology’ states that development should identify, value, conserve, restore, re-use and incorporate heritage assets where appropriate. London Plan Policy 7.8 also applies to non-designated heritage assets.

35 As discussed above, the site is in a rare pocket of the Borough that is not a designated conservation area; however the Chelsea Conservation Area lies approximately 50 metres to the north-west of the site on Draycott Avenue, and the Grade II listed former Michelin building lies on the opposite side of Sloane Avenue.

36 The applicant has provided a Townscape and Visual Impact Assessment (TVIA), which contains an assessment of 13 local townscape views. The views demonstrate the impact of the proposals on heritage assets is negligible and will cause no harm. It could be argued that the completion of the historical form of the building will be beneficial to the setting of these heritage assets.

37 London Plan Policy 7.8 also applies to non-designated heritage assets and the existing building can be considered as such. In this context, the completion of the historical form of the building as part of this scheme is welcomed.

Inclusive design

38 The layout of the building and the surrounding areas of public realm do not raise any inclusive design concerns.

39 Policy 3.8 ‘Housing Choice’ requires that 90% of new housing meets Building Regulation requirement M4(2) ‘accessible and adaptable dwellings’ and 10% of new housing meets Building Regulation requirement M4(3) ‘wheelchair user dwellings’, that is, designed to be wheelchair accessible or easily adaptable for residents who are wheelchair users. The applicant should confirm that 90% of the units have been designed to meet Building Regulation requirement M4(2). The application confirms that 10% will meet Building Regulation M4(3), and these are spread across units sizes. The Council should secure M4(2) and M4(3) requirements by condition.

Transport

40 The level of long stay cycle parking proposed meets London Plan standards, which should be secured by planning condition; however no short-stay cycle parking is proposed, which is contrary to London Plan policy. If sufficient short stay parking cannot be provided at street level due to site and footway constraints, a portion of short stay parking could be located in the basement of the building; however this should be separate from the long stay provision and easily accessed by visitors. Cyclists shower and changing facilities for staff of the non-residential uses should also be provided and secured by planning condition.

41 Cycle docking stations in the vicinity of the site are experiencing high levels of demand, and Sloane Avenue station, with 30 docking points, falls within the top 25% of the busiest stations on the London-wide network. Demand is anticipated to grow in the future and this

development is likely to increase pressure on the cycle hire network. A site specific section 106 contribution of £20,000 is therefore requested to extend the Sloane Street docking station to at least 36 docking points. This would be subject to approval from the Council as highways authority and if this is not possible, the funding would be used to enable the existing 30 docking points to be emptied and filled more frequently to better respond to demand.

42 Given the small scale of the development and the existing office use, the proposals are unlikely to have a negative impact on the capacity of public transport and the Mayoral CIL contribution towards Crossrail provides mitigation in terms of additional public transport capacity in the area. However, the provision of car parking will add traffic to an already congested highway network, which could have cumulative negative impacts on the operation of surface public transport and air quality. Whilst the level of car parking proposed is within London Plan standards, Table 6.2 states that development in areas of good public transport accessibility such as this should aim for significantly less than 1 space per unit. It is also noted that the Council has a maximum parking standard, which would equate in this case to 0.5 spaces per dwelling. This is a Borough-wide standard and on sites such as this one the Council's policy seeks lower provision. Consequently, 49 spaces at a ratio of 1:1 is considered to be excessive, and given the excellent public transport accessibility of the site and high car club coverage, the car parking provision should be reduced.

43 Given the proximity of a number of fully accessible bus services, excellent local facilities, the Council's 'Purple Badge' scheme allowing disabled residents to use on-street parking bays for free, and TfL's priority for step-free access at South Kensington Station, the requirement for on-site Blue Badge spaces could be waived in the event that the development was otherwise car free. This is subject to the views of the Council, but would negate the need for the vehicle lift/stacking system, and release space for increased cycle parking or the relocation of servicing to free up the ground floor for increased development. The requirement for exempting residents from applying for parking permits should be secured by condition or section 106 agreement.

44 Off-street servicing is proposed, which is supported. Both a delivery and service plan and a construction logistics plan should be secured by condition to appropriately manage any potential adverse effects on the highway network. A travel plan, together with subsequent review and monitoring, should be secured via condition/section 106 agreement. To encourage sustainable transport, it is recommended that the applicant provides funding for cycle hire membership for residents and staff for a period of at least five years.

45 In accordance with London Plan Policy 8.3, the Mayor has introduced a London-wide community infrastructure levy (CIL), and the charge in Kensington and Chelsea is £50 per square metre.

Climate change

46 The applicant should provide evidence of how Policy 5.9 has been addressed to avoid overheating and minimise cooling demand. A number of Part L compliance data sheets have been provided, showing a 'medium' risk of overheating in some cases. The applicant should provide Part L compliance data sheets for the sample dwellings and demonstrate that there is only a slight risk in the summer.

47 Both the residential and the non-domestic elements of the proposal have been assessed against a Part L baseline; however, the total side wide carbon emissions and savings for each stage of the energy hierarchy should be provided, as per Table 1 and Table 2 in the GLA assessment guidance: <https://www.london.gov.uk/what-we-do/planning/planning->

applications-and-decisions/pre-planning-application-meeting-service-0. For each tier of the energy hierarchy, the applicant should present the carbon emissions and savings separately for domestic and non-domestic elements as well as for the whole site.

48 The applicant has carried out an investigation and has concluded that there are currently no district heating networks to which the proposed development could connect. According to the London Heat Map the development is in a district heating opportunity area and the applicant should therefore contact the Council's energy officer to determine the current situation and evidence of correspondence should be provided.

49 The applicant should clarify if a communal heat network is proposed, fed by communal boilers in the plant room, and confirm that all uses will be connected to the heat network. The floor area, location and layout of the plant room should be provided.

50 The applicant has investigated the feasibility of combined heat and power (CHP); however is not proposed due to the intermittent nature of the heat load, which is accepted.

51 The applicant has investigated the feasibility of a range of renewable energy technologies and is proposing to install 125 sq.m. of solar thermal panels. Based on the roof layout there is potential for further panel installation, which should be reviewed to maximise the carbon savings from on-site renewables, especially since the achievable savings are low. The BRUKL file provided shows that photovoltaic (PV) panels have been taken into account in the calculations, but not included in the design, which should be clarified.

52 The comments above should be addressed before compliance with London Plan energy policy and carbon savings can be verified.

Air quality

53 London Plan 7.14 'Improving Air Quality' states that development proposals should minimise increased exposure to poor air quality and make provision to address local problems of air quality. The application includes an Air Quality Assessment; however, in order to allow for a proper assessment of the proposal against London Plan policy, a dispersion modelling study should be undertaken, taking account of the proposed use and the likely efficacy of the proposed mitigation. This is required in order to assess whether the proposal complies with Policy 7.14.

Local planning authority's position

54 Kensington & Chelsea Council has been in pre-application discussions with the applicant for some time.

Legal considerations

55 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008, the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application and any connected application.

56 There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

57 There are no financial considerations at this stage.

Conclusion

58 London Plan policies on employment and town centre uses; housing; affordable housing; urban design; historic environment; inclusive design; transport; climate change and air quality are relevant to this application. The application complies with some of these policies but not with others, for the following reasons:

- **Employment and town centre uses:** Although the proposal for 60 Sloane Avenue in isolation would result in a loss of office floorspace, the principle of re-providing a greater amount of office floorspace at 253-261 Kensal Road, together with a significant uplift in jobs, is supported, subject to clarification on viability and further consideration of affordable workspace. The provision of increased retail and leisure uses in a designated town centre is also supported in line with London Plan policies.
- **Housing:** The principle of residential development is consistent with London Plan policies and is supported. The choice of housing units and density is supported. The applicant should provide a response to play space policy requirements.
- **Affordable housing:** In accordance with London Plan Policy 3.12, a financial viability assessment has been submitted to the Council, covering both the 60 Sloane Avenue site and the 253-261 Kensal Road site. The applicant states that a cash-in-lieu contribution of £5M for affordable housing is proposed. Notwithstanding the applicant's assertion that substantial cross-funding is required to re-provide workspace off-site, GLA officers note the very high values that are achievable at the Sloane Avenue site, as well as the very large floorspace of some of the units proposed, and consider that a higher contribution should be possible. The Council's independent assessment of the applicant's financial viability assessment should be shared with GLA officers.
- **Urban design:** The overall layout, massing, height and architecture is supported. The applicant should confirm minimum floor to ceiling heights of the residential units.
- **Historic environment:** The proposals will cause no harm to heritage assets.
- **Inclusive design:** The Council should secure M4(2) and M4(3) requirements by condition.
- **Transport:** Short stay cycle parking should be provided in line with London Plan standards. Cyclists shower changing facilities for employees should also be provided and secured by condition. A site specific section 106 contribution of £20,000 is requested to extend the Sloane Street docking station. The level of residential car parking is considered excessive and should be reduced. The requirement that residents should be exempt from applying for parking permits should be secured via condition/section 106 agreement. A delivery and service plan and a construction logistics plan should be secured by condition. A travel plan should be secured via condition/section 106 agreement. Funding for cycle hire membership for residents and staff should be provided for a period of at least five years.
- **Climate change:** For each tier of the energy hierarchy, the applicant should present the carbon emissions and savings separately for domestic and non-domestic elements, as well

as for the total site. Further information should be provided before compliance with London Plan energy policy and carbon savings can be verified.

- **Air quality:** Further information is required in order to assess whether the proposal complies with Policy 7.14.

59 The application does not yet comply with the London Plan; however the possible remedies set out above could address these deficiencies.

for further information, contact GLA Planning Unit (Development & Projects Team):

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